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## Appeal Decision

Site visit made on 3 September 2026

**By G Powys Jones FRTPI**

an Inspector appointed by the Secretary of State

Decision date: 18 September 2026

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**Appeal Ref: 6011516**

**73 High Street, Ruislip, HA4 8JB**

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
  - The appeal is made by Sunni-Ed Limited against the decision of the Council of the London Borough of Hillingdon.
  - The application Ref is 14252/APP/2025/2753.
  - The development proposed is change of use of ground floor Class E (bank) to Sui Generis (bingo hall), following amendments to fenestrations.
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### Decision

1. The appeal is dismissed.

### Procedural and preliminary matters

2. The Council's description of the proposed development as used in its decision notice has been adopted since it more fully and accurately describes the proposal.
3. The property is located within the Ruislip Conservation Area (CA). The Council does not raise a heritage objection, and I share its view and the reasons for not objecting on this score.
4. The main parties to the appeal were provided with and have taken the opportunity to comment on the relevance of the 2026 edition of the *National Planning Policy Framework* (the Framework) to their respective cases.

### Main Issues

5. These are the effect of the proposal on: (a) the vitality and viability of Ruislip Town Centre, and (b) on the living conditions of neighbouring residents with particular reference to noise and disturbance.

### Reasons

#### *Vitality and viability*

6. The appeal property is set within Ruislip's High Street in that part of the designated Town Centre classified as a secondary shopping area in the development plan. The Council originally raised doubts as to whether the proposal could be properly regarded as a Bingo Hall in the context of the Framework's advice that a Bingo Hall is defined as a main town centre use. However, in its comments on the recently published Framework, the Council now acknowledges that the use proposed is

identified as a main town centre use but makes the additional point that this does not mean that the use is acceptable in every town centre location.

7. In this regard, the Council relies principally on policies DMTC2 & DMTC4 of the Hillingdon Local Plan Part 2 – Development Management Policies (DMP). These policies were adopted just prior to the introduction of changes to the Use Classes Order. The amendments to the Order introduced Class E, providing greater flexibility as to the interchangeability of uses without the need for planning permission, including within town centres.
8. Thus, in the absence of an Article 4 Direction, the level of management control implicitly sought by the Council in parts of DMP policy DMTC4 is no longer available in most cases. By the same token, and for the same reason, the Council cannot readily achieve the degree of control sought in DMP policy DMTC2 section B (i) & (ii).
9. Thus, in the context of the advice provided at paragraph 2 of Annex A to the Framework, those parts of these two policies are attributed very limited weight. However, DMTC2 section B (iii) is not reduced in weight since the proposal is subject to planning control and the objective of supporting the vitality and viability of the Town Centre is consistent with the Framework's national decision-making policy TC2.
10. The Council's concerns centre on its assertion that the introduction of the use would reduce the continuity of retail activity and alter the character and function of a shopping frontage. In this regard I note that the previous use was not retail, so the proposal would not result in the loss of any retail floorspace. Additionally, the Framework's policy TC2 does not suggest that the health of a town centre is entirely dependent on retail uses. On the contrary, a diversification in uses can assist in supporting vitality and viability. Additionally, bingo halls are accepted by government as a main town centre use, that is, it would be not out-of-place in the town centre with regard to national policy.
11. I therefore conclude the Council has failed to demonstrate that the proposal would harm the vitality and viability of Ruislip Town Centre, as alleged, in the terms of applicable local and national policy.

#### *Living conditions*

12. The facility is intended to operate throughout the night on a 24 hour basis for 7 days a week. The Council's concerns centre on the absence of a site-specific noise or acoustic assessment directed to the effect of the proposal on nearby residents, particularly at night. Instead, the appellant relies upon studies carried out elsewhere in the Capital. I can understand the reasons why the Council find these to be of limited value.
13. Although no maps or other information has been provided as to the location of residential uses in this part of the town centre, the appellant does not dispute that residential properties exist near to the appeal site. Indeed, I saw that there were flats above the next-door property at 75-79 High Street. The residents of these properties are more likely to be affected by any adverse impacts.
14. Residents living in town centres can reasonably expect to experience a greater level of activity than within more traditional residential areas. This would include

- evening uses, late-night shopping and restaurants and pubs which operate towards midnight.
15. However, Ruislip strikes me as a suburban town centre where there would normally be very little activity in the early hours and for most of the night. Residents accordingly are unlikely to be disturbed at these times. The appellant asserts that the level of usage envisaged is around 8 patrons an hour between noon and 8pm and 3 per hour at all other times. This level of usage is considered by the appellant to be light, unlikely to cause disturbance at any time of day or night.
  16. The Council has not challenged these predictions as to levels of usage, but it begs several questions in my mind, including why 35 terminals are to be provided if the degree of predicted usage is so significantly lower, and why the need to open at night arises for such a limited clientele, taking account of the costs of remaining open? The appellant has not properly explained the apparent contradictions.
  17. I am therefore unconvinced by the appellant's predictions of usage given the number of terminals subject of the submission. In the light of the close proximity of residents, I intend to adopt a precautionary approach, particularly in relation to the use of the premises at night and in the early hours, taking account of the number of terminals to be installed. Accordingly, there is a reasonable likelihood in my view that more customers than predicted will arrive at the site, particularly during the early hours, and their comings and goings into a relatively quiet environment would inevitably disturb local residents when they could reasonably expect to be sleeping.
  18. I have been referred to several appeal decisions for different reasons, and some are of limited relevance given the recent publication of a new Framework. However, on the issue of living conditions, the Finchley appeal<sup>1</sup> strikes me as a reasonable comparable. In that case, notwithstanding the availability of a noise assessment, the Inspector found against the appellants, who wished to remove a condition imposed on appeal restricting the hours of use. I am particularly struck by the content of paragraphs 14, 15 & 16 of the decision since they very much reflect my concerns as to the possible conduct of the proposed use during the late night and early hours, its effect on the external environment and its impact on local residents.
  19. This is a case where planning judgment has to be exercised based on site conditions and experience. In my view, there is a realistic prospect of the use harming the living conditions of local residents late at night and during the early hours. A condition restricting hours of operation would allay my concerns in this respect, but given the nature of the original submission and the appeal representations, this would clearly go against the grain of the proposal and the appellant's intentions and requirements, and no such condition has been suggested by the appellant.
  20. In conclusion I find that the proposal is likely to result in unacceptable harm to nearby residents by reason of noise and disturbance, conflicting with those provisions of DMP Policy DMHB 11 requiring development proposals not to adversely impact on the amenity of adjacent properties.

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<sup>1</sup> APP/N5090/W/24/3339159

### **Other matters**

21. Many local residents, their representative and a local organization have objected to the proposal. I have dealt with most of their concerns in my decision. Several express a distaste for the type of activity proposed, but it is an entirely lawful activity in all parts of the country, subject to licensing and planning permission.
22. No other matter raised is of such strength or significance as to outweigh the considerations leading me to my overall conclusions set out below.

### **Overall conclusions**

23. I find for the appellant on the first main issue, that of the effect of the proposal on the vitality and viability of the town centre. However, I find against the appellant on the second main issue, given the likely adverse effect on local residential living conditions. This is sufficient reason to dismiss the appeal.

*G Powys Jones*

INSPECTOR